

		<u>Item 13: Interpreter Fees</u> Plaintiff seeks to strike \$1,150.00 for the cost of Interpreter/Translation Services for the deposition of Plaintiff because this is a pre-offer cost: the invoice supporting this cost is dated 10/15/22. Plaintiff is incorrect. The jury rendered a defense verdict. Defendant was the prevailing party, and therefore entitled to recover authorized costs. These are authorized costs. The motion to strike \$1,150.00 from costs is DENIED. In summary, the motion to tax as to expert witness costs listed in Item No. 8 is GRANTED as to \$17,500, and DENIED as to the balance. Moving party to give notice.									
2	Floriani Engineering Inc vs Aegean Stoneworks, Inc., a California Corporation 2019-01061892	Motion to Be Relieved as Counsel of Record The motion of attorney John J. Freni, Esq., A Professional Law Corporation to withdraw as attorney of record for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering is GRANTED. <i>Code Civ. Proc. § 284, CRC 3.1362.</i> Attorney John J. Freni, Esq seeks an order being relieved as counsel for Plaintiff Floriani Engineering, Inc., d.b.a., Facilities Engineering. Summary of Moving Attorney's Evidence: <table border="1"> <tr> <td>1A.</td><td>Mandatory Notice Form?</td><td>Yes. ROA 460</td></tr> <tr> <td>1B.</td><td>Mandatory Declaration Form?</td><td>Yes. ROA 452</td></tr> <tr> <td>1C.</td><td>Proposed Order?</td><td>Yes. ROA 461</td></tr> </table>	1A.	Mandatory Notice Form?	Yes. ROA 460	1B.	Mandatory Declaration Form?	Yes. ROA 452	1C.	Proposed Order?	Yes. ROA 461
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1B.	Mandatory Declaration Form?	Yes. ROA 452									
1C.	Proposed Order?	Yes. ROA 461									

		2.	Reasons for Motion?	Failure to pay substantial outstanding attorney's fees, and failure to comply with payment options under which counsel would consent to continue the representation.
		3A.	Service on Client?	10/29/24 via email pursuant to CRC, Rule 3.1362(d)(2)
		3B1.	Recent Confirmation of Client's Address?	Yes. Counsel had consistent communications with the client in the last 30 days using the email, addresses for the client's two principals, Cindy Floriani and Vincent Baroldi
		3B2.	If no recent confirmation, what efforts made?	N/A
		4.	The next hearing scheduled?	5/19/25 Trial Setting Conference
		5.	Additional proceedings currently scheduled?	None
		6.	Trial Date?	None

Moving attorney has shown he has complied with all the requirements of the *California Rules of Court*, Rule 3.1362 and filed all the required forms.

There is good cause for counsel to withdraw. Mr. Freni asserts Floriani Engineering has failed to pay substantial outstanding attorney's fees and failed to comply with payment options. Accordingly, the motion to be relieved as counsel is GRANTED.

		Attorney will be relieved as counsel of record for client <u>effective upon filing of a Proof of Service of the Court's signed order on client.</u> Moving attorney is to give notice.
3	L. vs West Coast Fertility Centers, LLC 2023-01341735	Motion for Leave to File First Amended Cross-Complaint Defendant/Cross-Complainant SR Bray dba PowerPlus's (PowerPlus) Motion for Leave to File a First Amended Cross-Complaint is GRANTED. PowerPlus moves for an order for leave to file their First Amended Cross-Complaint (FACC). PowerPlus seeks to add Vitaly A. Kushnir, M.D. (Kushnir) as a cross-defendant and add Cross-Defendants West Coast Fertility Centers, LLC (West Coast Fertility) and West Coast Medical Group, PC (West Coast Medical) (collectively, "Responding Parties") to the first cause of action for express indemnity and the fourth cause of action for breach of contract. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading[.]" <i>Code of Civil Procedure</i> sections 473(a)(1), 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading."]. Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428; <i>Mesler v. Bragg Mgmt. Co.</i> (1985) 39 Cal.3d 290, 296 ["There is a strong policy in favor of liberal allowances of amendments."] Denial is rarely justified. <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.) However, denial is appropriate if the party seeking the amendment has been dilatory and the delay has prejudiced the opposing party. <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 490; <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 486-488 [denial proper where leave sought on eve